SOFTWARE DEVELOPMENT AGREEMENT

(FINAL – FEDERAL REPUBLIC OF NIGERIA)

This Software Development Agreement ("Agreement") is entered into as of [DATE] by and between:

Ricton Horizon Hub Limited ("Company"), a company duly incorporated under the laws of the Federal Republic of Nigeria, with its registered office at [Company Address];

AND

Oladotun Longe ("Developer"), residing at [Developer Address].

1. ENGAGEMENT

1.1 The Company hereby engages the Developer to design, develop, test, and deliver the Ricton healthcare platform ("Product"), comprising a B2B web application for healthcare providers and a B2C mobile application for patients, as further described in Clause 2 below. The Developer accepts such engagement subject to the terms of this Agreement.

1.2 The scope of work shall encompass the following components and deliverables:

(a) B2B Web Application: A React.js (TypeScript) single-page application for healthcare professionals (consultants, hospital administrators, pharmacies), including onboarding and authentication, appointment scheduling and calendar management, patient management, electronic prescription with OTP sign-off, telemedicine (1-on-1 and MDT group rooms), hospital admin portal, earnings overview, rewards module, and account settings.

(b) B2C Mobile Application: A React Native (Expo) application for iOS and Android patients, including onboarding and authentication (email, phone OTP, Google OAuth, Apple Sign-In), home dashboard, doctor browse and appointment booking with payment, telemedicine, prescription management, pharmacy order and tracking, wallet (Paystack virtual account), premium subscription, account and medical history management, and post-delivery feedback.

(c) Backend Microservices: Node.js / Express services covering Auth, User, Appointment, E-Prescription, Telemedicine, Pharmacy and Order, Payment and Wallet, Notification, Earnings and Rewards, Admin, and Analytics, containerised via Docker and orchestrated on AWS EKS.

(d) Infrastructure and DevOps: AWS cloud provisioning (VPC, EKS, RDS PostgreSQL, Redis, S3, CloudFront), CI/CD pipeline via GitHub Actions and ArgoCD, API Gateway (Kong), monitoring (Datadog, Sentry), and App Store / Google Play submission.

1.3 Any feature, module, or deliverable not listed in Clause 1.2 is expressly out of scope unless agreed in writing by both parties.

2. TERM

2.1 This Agreement shall commence on [Start Date] ("Commencement Date") and continue for a period of twelve (12) weeks, targeting a production launch by the end of Week 12, unless terminated earlier in accordance with this Agreement.

2.2 The delivery plan is structured across three phases: Month 1 (Weeks 1–4): Infrastructure, authentication, and onboarding; Month 2 (Weeks 5–8): Core clinical and patient MVP; Month 3 (Weeks 9–12): Polish, QA, security audit, and production launch. The full milestone-by-milestone breakdown of deliverables and exit criteria is set out in Appendix A.

3. FEES & PAYMENT

3.1 **Total Fee.** The total fee payable under this Agreement is ₦1,200,000 (One Million, Two Hundred Thousand Naira only), inclusive of all applicable taxes for which the Developer is solely responsible.

3.2 **Milestone-Based Payment Schedule.** Payments shall be released upon written confirmation by the Company that the applicable milestone exit criteria have been satisfied, as follows (the underlying delivery milestones and deliverables corresponding to each payment milestone are set out in full in Appendix A):

(a) Milestone 1 – End of Week 4 (25% = ₦300,000): AWS infrastructure live and deploying to staging; Auth and OTP APIs returning valid JWTs; B2B and B2C applications compiling, rendering, and accessible post-login/signup; Payment and Wallet service live.

(b) Milestone 2 – End of Week 8 (50% = ₦600,000): B2B appointment calendar, patient management, e-prescription, telemedicine (1-on-1 and MDT), and admin portal feature-

complete. B2C doctor browse, booking with payment, telemedicine, pharmacy order placement, and order status display feature-complete.

(c) Milestone 3 – End of Week 12 / Production Launch (25% = ₦300,000): All features code-complete and QA-passed; OWASP security audit complete; B2B deployed to production domain; B2C submitted to Apple App Store and Google Play Store; Datadog monitoring and Sentry alerting active.

3.3 **Payment Timing.** The Company shall make each milestone payment within seven (7) business days of written sign-off on the relevant milestone exit criteria. Sign-off shall not be unreasonably withheld or delayed.

3.4 **Late Payment.** Where the Company fails to make payment within the period specified in Clause 3.3 without reasonable cause, the Developer shall serve written notice of the delay. If payment remains outstanding for a further seven (7) business days after such notice, the Developer shall be entitled to suspend work until payment is received, without penalty and without prejudice to any other remedy available at law. Suspension periods shall extend the delivery timeline by an equivalent number of days.

3.5 **Quality Standard.** The Company reserves the right to withhold milestone payment where deliverables materially fail the exit criteria set out in Clause 3.2. Any withholding must be accompanied by written notice specifying the deficiencies. The Developer shall have fourteen (14) days to remedy the identified deficiencies before the milestone is re-evaluated.

4. INTELLECTUAL PROPERTY (ABSOLUTE ASSIGNMENT)

4.1 All rights, title, and interest in and to the Product, including source code, object code, designs, documentation, databases, and any derivative works, shall vest exclusively and irrevocably in the Company from the moment of creation.

4.2 The Developer hereby assigns to the Company all present and future intellectual property rights arising from work performed under this Agreement and agrees to execute any further documents reasonably required to perfect such assignment.

4.3 The Developer retains no licence, right, or interest in the Product or any component thereof following completion or termination of this Agreement.

5. SOURCE CODE CONTROL & ACCESS

5.1 All development shall be conducted exclusively on repositories owned and controlled by the Company. The Developer shall be granted collaborator access sufficient to perform the agreed work.

5.2 The Developer shall maintain the Company's administrative access to all repositories at all times and shall not transfer, fork, or host code externally without prior written consent from the Company.

5.3 All commits shall be made to the agreed repository structure. No production secrets, credentials, or API keys shall be committed to version control.

6. CONFIDENTIALITY

6.1 The Developer shall keep all Confidential Information strictly confidential and shall not disclose, copy, or use it for any purpose outside the performance of this Agreement. "Confidential Information" means all technical, commercial, financial, clinical, and patient-related information disclosed by the Company, whether or not marked as confidential.

6.2 This obligation survives the expiry or termination of this Agreement indefinitely and applies to all media, including digital storage.

7. DATA PROTECTION & SECURITY

7.1 The Developer shall comply with the Nigeria Data Protection Act 2023 (NDPA) and all applicable data protection regulations in the performance of this Agreement.

7.2 The Developer shall implement industry-standard security measures, including but not limited to: TLS 1.3 for data in transit; AES-256 encryption for data at rest; OWASP security best practices; and role-based access control as specified in the agreed technical architecture.

7.3 The Developer shall be liable for any data breach directly caused by the Developer's negligence or wilful misconduct. Liability for data breaches caused by factors outside the Developer's reasonable control shall be assessed under Clause 10.

8. WARRANTIES

The Developer warrants that: (a) all work produced is original and does not infringe any third-party intellectual property rights; (b) the Product shall be functional and materially

conform to the scope described in Clause 1.2; (c) the Developer has full authority to enter into this Agreement; and (d) no open-source components are used in a manner that would encumber the Company's ownership of the Product.

9. INDEMNITY

The Developer shall indemnify, defend, and hold harmless the Company and its officers, directors, and employees from and against any third-party claims, losses, damages, and costs (including reasonable legal fees) arising directly from: (a) infringement of any third-party intellectual property right by the Developer's work; (b) a data breach caused by the Developer's negligence or wilful misconduct; or (c) the Developer's material breach of this Agreement.

10. LIMITATION OF LIABILITY

10.1 Save as provided in Clause 10.2, the Developer's total aggregate liability to the Company under or in connection with this Agreement, whether in contract, tort, or otherwise, shall not exceed the total fees paid to the Developer under this Agreement.

10.2 The limitation in Clause 10.1 shall not apply in cases of: (a) fraud or fraudulent misrepresentation; (b) gross negligence; (c) wilful breach of the confidentiality obligations in Clause 6; or (d) deliberate infringement of the Company's intellectual property rights.

11. NON-COMPETE & NON-CIRCUMVENTION

11.1 For a period of twelve (12) months following the expiry or termination of this Agreement, the Developer shall not, without the prior written consent of the Company, directly build, develop, or provide development services for any product that directly replicates the core feature set of the Ricton platform (namely: B2B provider portals with e-prescription and telemedicine functionality combined with B2C patient booking and pharmacy order fulfilment) and that targets the Nigerian healthcare market.

11.2 This restriction shall not prevent the Developer from: (a) working in healthcare technology generally; (b) building products that address only one of the features listed in Clause 11.1 in isolation; or (c) providing development services for any product that does not directly compete with the Ricton platform as a whole.

11.3 For a period of twelve (12) months following expiry or termination, the Developer shall not directly solicit or engage any client, partner, or vendor introduced to the

Developer solely through the Company's engagement, for the purpose of circumventing the Company.

12. INDEPENDENT CONTRACTOR

12.1 The Developer is engaged as an independent contractor. Nothing in this Agreement creates an employment, partnership, or agency relationship between the parties.

12.2 The Developer is solely responsible for the payment of all personal income taxes, levies, and statutory deductions arising from fees received under this Agreement.

12.3 The Developer is not entitled to employee benefits, including but not limited to pension contributions, health insurance, leave pay, or redundancy payments.

13. TERMINATION

13.1 **Termination by the Company.** The Company may terminate this Agreement: (a) immediately upon written notice in the event of a material breach by the Developer that remains uncured for seven (7) days after written notice of such breach; or (b) for convenience, upon fourteen (14) days' written notice to the Developer.

13.2 **Termination by the Developer.** The Developer may terminate this Agreement: (a) upon fourteen (14) days' written notice where the Company is in material breach of its payment obligations under Clause 3 and such breach remains unremedied following the process in Clause 3.4; or (b) for convenience, upon fourteen (14) days' written notice.

13.3 **Payment on Termination.** Upon termination, the Company shall pay for all milestone deliverables that have been fully completed and signed off prior to the termination date, in accordance with the schedule in Clause 3.2. Partial work on an incomplete milestone shall be assessed and compensated on a pro-rata basis as reasonably agreed by both parties. No payment shall be made for work that materially fails the applicable exit criteria.

13.4 Upon termination for any reason, the Developer shall promptly deliver all work in progress, source code, credentials, and documentation to the Company.

14. POST-DELIVERY SUPPORT

14.1 The Developer shall provide thirty (30) calendar days of post-delivery support following production launch at no additional cost. For the avoidance of doubt, post-delivery support covers the following:

(a) Bug fixes for defects that existed in the Product at the time of launch and are reproducible in production;

(b) Critical security patches where a vulnerability is identified in code written by the Developer;

(c) Reasonable technical guidance to the Company's team on the codebase and deployment configuration.

14.2 Post-delivery support does not include new feature development, design changes, third-party integration failures outside the Developer's control, or issues caused by Company-side modifications to the codebase after launch.

14.3 The Developer shall respond to support requests within two (2) business days and shall resolve critical (P0) bugs within five (5) business days of confirmed reproduction.

15. DISPUTE RESOLUTION

15.1 In the event of any dispute arising out of or in connection with this Agreement, the parties shall first attempt to resolve the matter through good-faith negotiation within fourteen (14) days of written notice of the dispute.

15.2 If negotiation fails, the parties shall refer the dispute to mediation in Lagos, Nigeria, under a mutually agreed mediator. The costs of mediation shall be shared equally unless otherwise agreed.

15.3 If mediation fails within thirty (30) days, either party may refer the matter to binding arbitration in accordance with the Arbitration and Mediation Act 2023 (Nigeria). The arbitration shall be conducted in Lagos, in English, before a single arbitrator agreed by both parties or appointed by a recognised arbitral institution.

16. GOVERNING LAW

This Agreement is governed by and construed in accordance with the laws of the Federal Republic of Nigeria.

17. ENTIRE AGREEMENT & AMENDMENTS

17.1 This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior representations, negotiations, and understandings.

17.2 No amendment to this Agreement shall be effective unless made in writing and signed by duly authorised representatives of both parties.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

For and on behalf of Ricton Horizon Hub Limited

Signature: _____

Name: _____

Title: _____

Date: _____

Oladotun Longe (Developer)

Signature: _____

Name: Oladotun Longe

Date: _____

APPENDIX A — PROJECT MILESTONES AND DELIVERABLES

This Appendix forms part of, and is incorporated into, the Agreement. It sets out the seven (7) delivery milestones referred to in Clauses 2.2 and 3.2, together with the key deliverables for each, and the week-by-week exit criteria against which delivery is assessed. In the event of any inconsistency between this Appendix and the body of the Agreement, the body of the Agreement shall prevail.

A.1 Milestone Summary

Seven (7) delivery milestones span the twelve (12) week Term. M1–M3 run concurrently in Weeks 1–4; M4–M5 run in parallel in Weeks 5–8; M6–M7 close the Term.

#	Weeks	Milestone	Key Deliverables	Track
M1	Wk 1–4	Infrastructure & Auth Foundation	AWS infra, CI/CD, Auth, User, OTP, API Gateway, project scaffolds	Shared
M2	Wk 1–4	B2B Onboarding & Dashboards	Landing, login/register (all roles), OTP verify, dashboards	B2B
M3	Wk 1–4	B2C Onboarding & Home	All auth flows (email/phone/OAuth/Apple), profile setup, home	B2C
M4	Wk 5–8	B2B Core Clinical MVP	Calendar, patient management, e-prescription, telemedicine, MDT, admin portal	B2B
M5	Wk 5–8	B2C Core Patient MVP	Doctor browse, booking, payment, telemedicine, prescriptions, pharmacy order	B2C
M6	Wk 9–10	Wallet, Earnings & Account	B2C wallet, B2B earnings/rewards, all settings, premium subscription	Both

M7	Wk 10–12	QA, Security & Launch	E2E QA, load test, UAT, OWASP audit, production deploy, App Store/Play submission	Both

A.2 Mapping to Payment Milestones

The Milestones at A.1 above correspond to the payment milestones in Clause 3.2 as follows:

Payment Milestone (Clause 3.2)	**Corresponding Delivery Milestones (Appendix A.1)**	**Due / % of Fee**
Milestone 1 (Cl. 3.2(a))	M1, M2 and M3	End of Week 4 / 25%
Milestone 2 (Cl. 3.2(b))	M4 and M5	End of Week 8 / 50%
Milestone 3 (Cl. 3.2(c))	M6 and M7	End of Week 12 / 25%

A.3 Weekly Exit Criteria

The following checkpoints are assessed during delivery and inform the milestone sign-off process in Clause 3.2:

Week	**Exit Criteria**
Wk 1	AWS infrastructure live, CI/CD deploying to staging, Auth API returning JWTs.
Wk 2	OTP delivery working (email + SMS), User Service running, B2B/B2C compiling and rendering.
Wk 4	B2B dashboard accessible post-login. B2C home screen rendered post-signup. Payment & Wallet service live.

Wk 6	B2B: appointments and patient management fully working. B2C: doctor search and booking with payment confirmed.
Wk 8	B2B: e-prescription, telemedicine (1-on-1 and MDT), admin portal complete. B2C: pharmacy order placed and status shown.
Wk 10	All features code-complete. No new feature additions after this point (feature freeze).
Wk 11	End-to-end QA complete. All P0/P1 bugs resolved. UAT signed off by stakeholders.
Wk 12	B2B live on production domain. B2C submitted to both the Apple App Store and Google Play Store. Monitoring active.